

THE EVOLUTION OF PHILIPPINE CONSTITUTION



Malolos Constitution (1899)

The constitution considered as the first republican constitution in Asia. It established a democratic form of government with a president as the head of state and government during the Philippine Revolution against Spanish colonial rule.



1935 Constitution

It was enacted as the fundamental law of the Commonwealth of the Philippines. The legislature was changed from a unicameral assembly to a bicameral congress. The amendment also changed the term limit of the President of the Philippines from six years with no reelection to four years with a possibility of being reelected for a second term.



Martial Law (1972-1986)

In 1972, then-President Ferdinand Marcos declared martial law and subsequently suspended the 1935 Constitution. Marcos introduced a new constitution, the 1973 Constitution, which centralized power in the presidency and allowed him to extend his rule beyond the constitutional term limits. In 1981, Marcos further amended the constitution to lift presidential term limits. The authoritarian rule of Marcos led to widespread human rights abuses and economic turmoil, sparking massive opposition and protests.



American Colonial Rule (1901-1935)

After the Spanish-American War, the Philippines came under American rule. Organic Acts were passed by the United States Congress for the administration of the Government of the Philippine Islands. In 1934, the United States Congress passed the Philippine Independence Act, which set the parameters for the creation of a constitution for the Philippines.



Japanese Occupation (1942-1946)

During World War II, the Philippines was occupied by Japan. In 1943, the Japanese-sponsored Philippine Republic was established with its own constitution. After the war, the Philippines was granted independence by the United States in 1946, under the leadership of President Manuel Roxas.



1987 Constitution

The 1987 Constitution was drafted and ratified following the ousting of Marcos in the 1986 People Power Revolution. The 1987 Constitution finally came into full force and effect that same day with the President, other civilian officials, and members of the Armed Forces swearing allegiance to the new charter.



ADVANCED ORGANIZER

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History 11: Readings in the Philippine History

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